

HIGHWAY SAFETY PROGRAM FFY2023 SUB-AWARD AGREEMENT BETWEEN THE WYOMING DEPARTMENT OF TRANSPORTATION HIGHWAY SAFETY PROGRAM AND CHEYENNE POLICE DEPARTMENT

I. Sub-Recipient Contact Information	
Sub-Recipient: Cheyenne Police Department Mailing Address: 415 W. 18th Street Sub-Recipient Unique Entity Identifier: UQHNZWAM8YLQ (OLD KURKMKZUFMY2) Sub-Recipient Expenditure Amount: \$36,530.59	Sub Award Title: Occupant Protection High Visibility Overtime Enforcement City, State, Zip: Cheyenne, WY 82001-4331 Budget Period: October 1, 2022 – September 30, 2023 Sub-Recipient Indirect Rate: 0%
II. Highway Safety Program Contact Information	
Program Manager Name: Karson James Telephone: 307-777-4200 Email: karson.james@wyo.gov	Grant Manager Stephanie Lucero 307-777-4198 stephanie.lucero@wyo.gov
III. Highway Safety Program Award Information	
HSP Project Number: OP-2023-BI-OP-01 WYDOT Project Number: HS40223 Funding Source: 402 Is Award for Research or Development? No Total Expenditure Amount: \$36,530.59 Total Approved Funds: \$40,548.95	Program Area: Occupant Protection WYDOT Activity Number: WHVE Federal Percent: 90.49% Performance Period: October 1, 2022 – December 31, 2023 WYDOT Indirect Rate: 11% Local Benefit: \$36,692.74
IV. Federal Award Information	
NHTSA Region 8 Program Administrator Name: Gina Espinosa-Salcedo Telephone: 720-963-3100 Email: NHTSA.region8@dot.gov	
Assistance Listing Number: 20.616 Federal Awarding Agency: National Traffic Highway Safety Administration (NHTSA) FAIN: 69A37522300004020WY0 Amount of Federal Funds Obligated by Action: \$271,470.00 Total Federal Award: \$1,990,518.91	Assistance Listing Number Title: National Priority Safety Programs Federal Award Name: Highway Safety Behavioral Program (HSO) Federal Award Date: 5/16/2022 Total Amount of Funds Obligated: \$333,000.00

1. **Parties.** This is a Sub-Award Agreement (Agreement) of federal financial assistance from the Wyoming Department of Transportation Highway Safety Program (WYDOT), whose address is 5300 Bishop Blvd., Cheyenne, Wyoming 82009, to the Cheyenne Police Department (Sub-Recipient), whose address is 415 W. 18th Street, Cheyenne, WY 82001-4331.
2. **Purpose.** The purpose of this Agreement is to set forth the respective relationships and responsibilities of the Sub-Recipient and WYDOT in the administration of the Highway Safety Behavioral Program. This agreement establishes a responsibility of the Sub-Recipient to WYDOT and that the Sub-Recipient will follow all grant requirements as outlined by WYDOT and all applicable State and Federal regulations.
3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The term of this Agreement is from October 1, 2022 or the Effective Date, whichever is later (Term Start Date), through December 31, 2023. The Sub-Recipient's Budget Period is from the Term Start Date, through September 30, 2023. WYDOT's Performance Period is from the Term Start Date through December 31, 2023.
4. **Problem Statement.** Seat belt usage is key to reducing injuries and is the single most effective way to protect yourself in a traffic crash. The data shows there is much work to be done to reduce unbelted injuries on Wyoming roads. Wyoming's 2021 Observed Seat Belt use at 80.2% which is well below the national observed seat belt use rate at 90.4%. The Wyoming Electronic Crash Records System (WECRS) shows that in 2021 there were thirteen thousand eight hundred and eighty-five (13,885) traffic crashes. Low seat belt usage was a contributing factor to the one hundred eleven (111) fatalities with forty-six (46) unbelted fatalities. In addition there were nine hundred sixty-three (963) crashes with unbelted vehicle occupants and four hundred forty-three (443) unbelted injuries with two hundred fifteen (215) critical injuries (fatal and serious injuries).

Cheyenne Police Department investigated 10.00%, 11.13%, and 13.67% of unbelted vehicle occupant crashes for 2019, 2020, and 2021 of all statewide occupant protection related traffic crashes respectively (WYDOT Traffic Records).

5. **Scope of Work.** High Visibility Enforcement (HVE) is a universal traffic safety approach designed to create deterrence and change unlawful traffic behaviors through highly visible and proactive occupant protection law enforcement. This project will provide year long sustained occupant protection overtime enforcement opportunities to local law enforcement agencies.
6. **Performance Measures.** The Safety Management System (SMS) Committee analyzes the five (5) and ten (10) year running averages along with recent trends to determine the new performance targets. Section seven (7) and Section eight (8) will assist WYDOT in reaching statewide performance targets listed below:
 - A. C-1 Number of Traffic Fatalities (FARS, FHWA)
FY2023 Target: One hundred twenty-eight (128).

B. C-2 Number of Serious Injuries in Traffic Crashes (State)

Highway Safety Program Sub-Award Agreement between the
Wyoming Department of Transportation Highway Safety Program and Cheyenne Police Department
HSP Project OP-2023-BI-OP-01, Sub-award Title Occupant Protection High Visibility Overtime Enforcement

FY2023 Target: Four hundred fifty (450).

C. C-4 Number of Unrestrained Passenger Vehicle Occupant Fatalities, All Seat Positions (FARS)

FY2023 Target: Fifty-five (55).

D. C-6 Number of Speeding Related Fatalities (FARS)

FY2023 Target: Forty-six (46).

7. **Goals.** Utilize local law enforcement to effectively deploy resources to assist in reducing unbelted fatalities and injuries through enforcement of Wyoming's Occupant Protection laws.

8. **Deliverables.** The Sub-Recipient agrees to:

- A. Conduct all grant related activity on the HSO Project Site. An email invite will be sent to the Project Director, Authorizing Official, and authorized signers upon execution of this Agreement. All reporting forms will be available on the HSO Project Site.
- B. Conduct sustained year round enforcement based on a data driven efforts.
- C. Participate in the required occupant protection 'May Mobilization' campaign from May 17, 2023 to June 4, 2023.
- D. Acknowledge that it is encouraged to participate in NHTSA national campaigns. Calendar of events can be found at:
<https://www.trafficsafetymarketing.gov/calendars>.
- E. Ensure occupant protection enforcement is conducted from a marked patrol vehicle. No foot or bicycle patrols allowed.
- F. Provide officers participating in high visibility occupant protection overtime 'Wyoming Safety Belt Enforcement Guide'. WYDOT will provide Sub-Recipient copies upon execution of this agreement.
- G. Ensure the Attachment E, Event Activity Summary Report (HS-7), which is attached to and incorporated into this Agreement by this reference, clearly indicates Occupant Protection is the focus of the event.
- H. Ensure that the reporting officer clearly indicates on Attachment D, Officer Activity Report (HS-6), which is attached to and incorporated into this Agreement by this reference, that Occupant Protection is the focus of the overtime through one of the following methods.
 - (i) Enforcement of occupant protection as evidenced by occupant protection citations.

- (ii) Occupant Protection enforcement as evidenced by occupant protection warnings.
 - (iii) If no occupant enforcement citations or warnings are issued, a comment is required in the Notes Section as to why.
 - I. Ensure reimbursement is based on actual overtime expenditures and comply with the Fair Labor Standards Act (FLSA). Must provide official agency generated expense report(s) for labor charges.
 - J. Ensure Project Director or Authorizing Official signature is on Attachment B, Grant Claim for Reimbursement, which is attached to and incorporated into this Agreement by this reference. If not, provide a letter authorizing said individual to approve expenditures.
 - K. If an officer is called to assist with high priority calls that does not involve occupant protection overtime enforcement for any reason, officer must not claim reimbursement for overtime hours.
 - L. May provide Officer Log or other supporting documentation when submitting Attachment B, Grant Claim for Reimbursement.
 - M. If no grant funded impaired driving overtime is conducted during the month, Sub-Recipient must submit an Attachment B, Grant Claim for Reimbursement, indicating zero (0) expenditures or post a message on the HSO Project Site indicating no expenditures for that month.
 - N. Notify WYDOT immediately if unable to fulfill the stated activities, for any reason, to discuss alternate plans.
9. **Project Budget.** WYDOT agrees to pay the Sub-Recipient the cost-not-to-exceed, Grant Expenditure Amount specified below:

A. Cost Summary.

Personnel Services	\$ 36,530.59
Indirect Cost (0%)	\$ 0.00
Grant Expenditure	\$ 36,530.59
Amount	
WYDOT ICAP (11%)	\$ 4,018.36
Total	\$ 40,548.95

B. NOTES.

- (i) The Sub-Recipient shall submit all requests for reimbursement to WYDOT no later than October 15, 2023. Any cost modification of the budget must be approved by WYDOT.

- (ii) Any cost modification of the budget must be approved by WYDOT.
- (iii) The Sub-Recipient shall have the following documentation supporting expenditures when requesting reimbursement: Attachment B, Grant Claim for Reimbursement; Attachment C, Balance Report; which is attached to and incorporated into this Agreement by this reference; Agency Generated Expense Report(s); Attachment E, Event Activity Report (HS-7); and Attachment D, Officer Activity Report (HS-6).
- (iv) When submitting payment to the HSO Project Site, ensure the file name includes the following information: Agency Name, Month, Focus of Enforcement (ie., any agency January DUI).
- (v) Payment will be processed upon review and approval of documentation submitted with Attachment B, Grant Claim for Reimbursement.
- (vi) If clarification, additional documentation, updates, or changes to support documentation is needed from any submitted or future expenses WYDOT will notify the Sub-Recipient in writing of the request and provide an expected response date or implementation date.
- (vii) The Sub-Recipient shall notify WYDOT immediately if they are unable to spend the budgeted amount, for any reason, to discuss alternate plans.
- (viii) In accordance with 23 CFR Part 1300 Appendix C, the accepting agency, as a representative of its political subdivision, requests the benefit of WYDOT coordination of paid media and marketing to capitalize on the high visibility enforcement and education model necessary to change driver behavior. WYDOT will coordinate paid and earned media statewide to complement the enforcement initiative outlined in this project agreement. The outreach may include the following: TV spots, radio spots, online ads, billboards, print ads, press releases, posters, flyers, and/or outreach events. These efforts will include local jurisdictions and will be coordinated statewide. By signing below, the project director signifies his/her understanding of the outreach component of the mobilization and approves the use of these educational techniques within his/her jurisdiction.

10. Project Evaluation/Reporting.

- A. **Monthly Report.** Attachments D, Officer Activity Report (HS-6) and E, Event Activity Summary Report (HS-7) shall serve as the Monthly Report for all expenditures. Sub-Recipient must submit an Attachment B, Grant Claim for Reimbursement indicating zero (0) expenditures or post a message on the HSO Project Site indicating no expenditures for that month by the 15th of the following month.

- B. Annual Report.** WYDOT shall provide the Sub-Recipient an Annual Report summarizing all fiscal year project activities and will be required, at minimum, to sign the report acknowledging its accuracy, and may comment on project successes or challenges.
- 11. Seat Belt Policy.** The Sub-Recipient shall have a seat belt usage policy and require any of its sub-recipients, contractors, subcontractors, and consultants to comply.
- 12. Federal Certifications and Assurances.** The Sub-Recipient shall comply with all the requirements in Attachment A, Federal Certifications and Assurances, which is attached to and incorporated into this Agreement by this reference.
- 13. State Special Provisions for Federal Dollars.**
- A. Assumption of Risk.** The Sub-Recipient shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to the Sub-Recipient's failure to comply with state or federal requirements. WYDOT shall notify the Sub-Recipient of any state or federal determination of noncompliance.
- B. Environmental Policy Acts.** Sub-Recipient agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.
- C. Human Trafficking.** As required by 22 U.S.C. § 7104(g) and 2 CFR Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:
- (i)** Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
 - (ii)** Procures a commercial sex act during the period of time that the award is in effect; or
 - (iii)** Uses forced labor in the performance of the award or subawards under the award.
- D. Kickbacks.** Sub-Recipient certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If Sub-Recipient breaches or violates this warranty, WYDOT may, at its discretion, terminate this Agreement without liability to WYDOT, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.
- E. Limitations on Lobbying Activities.** By signing this Agreement, Sub-Recipient certifies and agrees that, in accordance with P.L. 101-121, payments made from a federal grant shall not be utilized by Sub-Recipient or its subcontractors in

connection with lobbying member(s) of Congress, or any federal agency in connection with the award of a federal grant, agreement, cooperative agreement, or loan.

- F. Monitoring Activities.** WYDOT shall have the right to monitor all activities related to this Agreement that are performed by Sub-Recipient or its subcontractors. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of Agreement related work.
- G. Nondiscrimination.** The Sub-Recipient shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement.
- H. No Finder's Fees:** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.
- I. Suspension and Debarment.** By signing this Agreement, Sub-Recipient certifies that neither it nor its principals/agents are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), 44 CFR Part 17, or 2 CFR Part 180, or are on the debarred, or otherwise ineligible, vendors lists maintained by the federal government. Further, Sub-Recipient agrees to notify WYDOT by certified mail should it or any of its principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving federal funds during the term of this Agreement.
- J. Administration of Federal Funds.** Sub-Recipient agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 C.F.R. Part 200, *et seq.*; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by WYDOT.
- K. Federal Audit Requirements.** Sub-Recipient agrees that if it expends an aggregate amount of seven hundred fifty thousand dollars (\$750,000.00) or more in federal funds during its fiscal year, it must undergo an organization-wide financial and compliance single audit. Sub-recipient agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit Requirements of 2 C.F.R. Part 200, Subpart F. If findings are

made which cover any part of this Agreement, Sub-Recipient shall provide one (1) copy of the audit report to WYDOT and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to WYDOT's records.

- L. Non-Supplanting Certification.** Sub-Recipient hereby affirms that federal grant funds shall be used to supplement existing funds, and shall not replace (supplant) funds that have been appropriated for the same purpose. Sub-Recipient should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Agreement.
- M. Program Income.** Sub-Recipient shall not deposit grant funds in an interest bearing account without prior approval of WYDOT. Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to WYDOT.

14. State General Provisions for Federal Dollars.

- A. Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.
- B. Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms "hereof," "hereunder," "herein," and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. Assignment Prohibited and Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The Sub-Recipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.
- D. Audit and Access to Records.** WYDOT and its representatives shall have access to any books, documents, papers, electronic data, and records of the Sub-Recipient which are pertinent to this Agreement. The Sub-Recipient shall immediately, upon receiving written instruction from WYDOT, provide to any independent auditor or accountant all books, documents, papers, electronic data, and records of the Sub-Recipient which are pertinent to this Agreement. The Sub-Recipient shall cooperate fully with any such independent auditor or accountant during the entire course of any audit authorized by WYDOT.
- E. Availability of Funds.** Each payment obligation of WYDOT is conditioned upon the availability of government funds which are appropriated or allocated for the

payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Agreement, the Agreement may be terminated by WYDOT at the end of the period for which the funds are available. WYDOT shall notify the Sub-Recipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to WYDOT in the event this provision is exercised, and WYDOT shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section.

- F. Award of Related Agreements.** WYDOT may award supplemental or successor contracts for work related to this Agreement or may award contracts to other Sub-Recipients for work related to this Agreement. The Sub-Recipient shall cooperate fully with other Sub-recipients and WYDOT in all such cases.
- G. Compliance with Laws.** The Sub-Recipient shall keep informed of and comply with all applicable federal, state, and local laws and regulations, and all federal grant requirements and executive orders in the performance of this Agreement.
- H. Entirety of Agreement.** This Agreement, consisting of thirteen (13) pages; Attachment A, Federal Certifications and Assurances, consisting of twenty-one (21) pages, Attachment B, Grant Claim for Reimbursement consisting of one (1) page, Attachment C, Balance Report consisting of one (1) page, Attachment D, Officer Activity Report (HS-6), consisting of one (1) page, Attachment E, Event Activity Report (HS-7), consisting of one (1) page, represent the entire and integrated Agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.
- I. Ethics.** Sub-Recipient shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Sub-Recipient's profession.
- J. Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein. Any extension of this Agreement shall be initiated by WYDOT and shall be accomplished through a written amendment between the parties entered into before the expiration of the original Agreement or any valid amendment thereto, and shall be effective only after it is reduced to writing and executed by all parties to the Agreement.
- K. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods,

epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.

- L. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- M. Independent Contractor.** The Sub-Recipient shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the Sub-Recipient shall be free from control or direction over the details of the performance of services under this Agreement. The Sub-Recipient shall assume sole responsibility for any debts or liabilities that may be incurred by the Sub-Recipient in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Sub-Recipient or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or WYDOT or to incur any obligation of any kind on behalf of the State of Wyoming or WYDOT. The Sub-Recipient agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance, or similar benefits available to State of Wyoming employees will inure to the benefit of the Sub-Recipient or the Sub-Recipient's agents or employees as a result of this Agreement.
- N. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Agreement.
- O. Ownership and Return of Documents and Information.** WYDOT is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Sub-Recipient in the performance of this Agreement. Upon termination of services, for any reason, Sub-Recipient agrees to return all such original and derivative information and documents to WYDOT in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.
- P. Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-1016(b)(iv).

- Q. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- R. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and WYDOT expressly reserve sovereign immunity by entering into this Agreement and the Sub-Recipient expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- S. Taxes.** The Sub-Recipient shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- T. Termination of Agreement.** This Agreement may be terminated, without cause, by WYDOT upon thirty (30) days written notice. This Agreement may be terminated by WYDOT immediately for cause if the Sub-Recipient fails to perform in accordance with the terms of this Agreement.
- U. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- V. Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- W. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- X. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- Y. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the Sub-Recipient of an originally signed counterpart of this Agreement by facsimile

or PDF shall be followed up immediately by delivery of the originally signed counterpart to WYDOT.

- Z. Insurance Requirements.** Sub-Recipient is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, et seq., and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, et seq., and shall provide a letter verifying its participation in the WARM or LGLP to WYDOT.

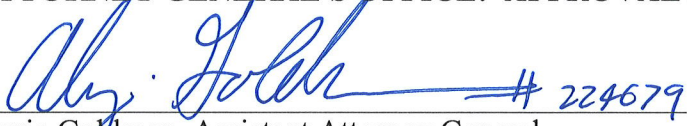
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15. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

SUB-RECIPIENT: PROJECT DIRECTOR NAME: Mark Francisco TITLE: Chief of Police PHONE: 307-637-6512 EMAIL: mfrancisco@cheyennepd.org SIGNATURE: DATE:	SUB-RECIPIENT: AUTHORIZING OFFICIAL NAME: Patrick Collins TITLE: Mayor PHONE: 307-637-6300 EMAIL: pcollins@cheyennecity.org SIGNATURE: DATE:
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HIGHWAY SAFETY PROGRAM APPROVAL	
SIGNATURE:	DATE:
WYDOT APPROVAL	
SIGNATURE:	DATE:

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM


Alysia Goldman, Assistant Attorney General

7/29/22
Date